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POLITICS OF EUROPEAN INTEGRATION: CLASSROOM EXERCISE

Commission v Poland: A Rule-of-Law Moot Court

*A 55-minute moot-court simulation of an infringement action
before the Court of Justice, blending legal argument with
political leverage.*

Topic tags: rule of law · judicial independence · infringement proceedings · Court of Justice · Article 2
TEU · sanctions veto

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Abstract

This moot court puts students inside a rule-of-law infringement action before the Court of Justice of the European Union. A fictional member state, Poland, has enacted a “Judicial Court Reform Act 2023” that lowers judicial retirement ages, politicises appointments, restructures the courts and creates a disciplinary chamber. The European Commission brings the state before the Court, arguing the Act breaches the Union’s foundational values and the requirement of effective judicial protection; the state replies that judicial organisation is a national competence on which the Court cannot adjudicate. The distinctive feature of the exercise is that the outcome turns on more than legal merit. Two (or more) intervening member states must decide whether to file observations for the Commission or for the defendant, and both sides may lobby them not only on the law but with political leverage: a looming unanimous vote on a new package of Russia sanctions gives the defendant a credible veto to trade. Students argue the case, referee the political sub-game, and sit as a bench that may strike down all, some or none of the Act and impose financial penalties. The exercise teaches the substantive law of judicial independence alongside the political economy of enforcing it.

Learning outcomes

By the end of this exercise students will be able to:

- Explain how an infringement action reaches the Court of Justice (investigation, formal notice, reasoned opinion, referral) and what remedies and penalties the Court can impose under Articles 258 and 260 TFEU.
- Construct and rebut the competing legal arguments in a rule-of-law dispute, deploying Article 2, Article 4 and Article 19(1) TEU, Article 47 of the Charter, and the relevant case law on judicial retirement ages and appointments.
- Analyse the interpretive posture of the Court, in particular how it derives concrete obligations of judicial independence from general treaty values, and where the limits of that reasoning lie.
- Evaluate how political leverage (veto power over unrelated Council business, frozen funds, threatened non-compliance) shapes the enforcement of EU law, and why legal supremacy does not guarantee legal effectiveness.
- Assess critically whether courts are an effective guardian of the rule of law when a member state signals it will not comply.

At a glance

Duration	55 minutes of simulation, plus 15–20 minutes debrief
Class size	12–30 students (5 core roles; scales up by adding interveners and by teaming each role)
Room setup	One room; a raised or fronted table for the bench facing counsel benches; separate corner or breakout space where interveners can be lobbied privately; projector
Materials needed	The shared case file (one per student); the five role briefs; the bench’s judgment/scoring sheet (Appendix A); a visible countdown timer; name cards for each role
Instructor prep time	45–60 minutes (allocate roles, print or share the case file and briefs, print the bench scoring sheet, decide how many interveners to run)
Student prep time	30–45 minutes reading the shared case file and their own role brief, and preparing their argument or questions

Pre-class preparation

For the instructor

- Decide the number of intervening states. The exercise runs with two (Finland and Hungary). To scale up, add one or more further interveners using the template in the Adaptation notes; an odd total works well because it makes the interveners’ collective leaning less predictable.
- Allocate the five core roles: the Court (bench), the Commission (plaintiff), Poland (defendant), and the interveners (Finland and Hungary). Any role may be a single student or a small team of 2–4. The bench should have at least three members so it can deliberate; a President and a Judge-Rapporteur can be nominated from within it.
- Distribute the shared case file (Appendix B) to everyone, and each role brief only to the students playing that role, at least a day ahead. The interveners’ undecided stance is part of the design, so do not reveal one intervener’s brief to another.
- Print the bench’s judgment and scoring sheet (Appendix A). The bench uses it to structure deliberation and to record which provisions it strikes down and why.
- Brief yourself on the political sub-game (Appendix A, “Refereeing the political-leverage sub-game”) so you can adjudicate any veto threats or side deals consistently and keep them inside the rules.
- Emphasise to students that the case is fictional and modelled on, but not identical to, real CJEU litigation. They argue the assigned position, not their own view.

For students

- Read the shared case file in full, then your own role brief. Identify the two or three points you must win and where you have room to concede.
- Counsel (Commission and Poland): prepare a short opening (about 3 minutes) and anticipate the bench's likely questions. Interveners: prepare the questions you will put to both sides before you decide. The bench: prepare the questions you will ask each party and read the scoring sheet so you know what you are assessing.

Session plan

The simulation runs to 55 minutes. The scenario is set out in the shared case file: the Commission has referred Poland to the Court over the Judicial Court Reform Act 2023, and a unanimous Council vote on a new Russia-sanctions package is expected within months, giving the veto its bite.

Time	Phase	What happens
0:00–0:05	Convening	The President of the Court opens the sitting and states the question: does the Act breach EU law, and if so what remedy follows. Each role introduces itself in one line. The instructor confirms the timing and the rules of the political sub-game.
0:05–0:12	Lobbying round	The Commission and Poland each get up to 3 minutes with the interveners (in parallel or in turn) to win their observations, on legal merit or political leverage. Intervenors take notes but do not commit yet. The bench observes and may listen in.
0:12–0:20	Commission's submission	The Commission opens as plaintiff (about 5 minutes), then takes bench questions (about 3 minutes). It argues breach of the rule of law and judicial independence and proposes penalties.
0:20–0:28	Poland's submission	Poland replies as defendant (about 5 minutes), then takes bench questions (about 3 minutes). It argues the Court lacks competence over judicial organisation, or that EU law does not apply.
0:28–0:36	Intervenors' observations	Each intervener states which side it supports and why (about 3 minutes each), and may reveal any deal it has struck. The bench and both parties may put one short question to each intervener.
0:36–0:40	Rebuttal	Commission then Poland each get up to 2 minutes of closing rebuttal, responding to the intervenors and to the bench's questions.
0:40–0:52	Deliberation and judgment	The bench withdraws (or confers at the front while the room waits)

Time	Phase	What happens
		and works through the scoring sheet provision by provision. It decides which provisions to strike, whether to order compliance, and whether to impose a lump sum and/or daily penalty. The Judge-Rapporteur delivers the ruling with brief reasons.
0:52–0:55	Non-compliance move	The President asks the defendant whether it will comply. Poland states its choice. If it refuses, the instructor notes what would follow under Article 260 TFEU (a second action, financial penalties) and whether the interveners' choices made refusal look credible.

Rules of the exercise

- **The bench must give weight to the interveners' observations.** More interveners on one side is a thumb on the scale, not a decision rule; the bench still decides on the law and records its reasons.
- **The veto is real but bounded.** The defendant and interveners may trade support for the sanctions package, but only the instructor, as chair of the Council, can confirm whether a veto threat is credible on the day (see Appendix A). No side deal binds the bench.
- **The bench may split the Act.** It is not all-or-nothing; the Court may strike some provisions, uphold others, and calibrate the penalty to the provisions it strikes.

Debrief and reflection

Allow 15–20 minutes. This is where the two halves of the exercise, law and politics, are drawn together. Group the questions as follows.

On the law (for counsel and the bench). Surface how obligations were built from general treaty text.

- Where in the Treaties did the Commission find a duty of judicial independence, given that no article uses those words? Was the bench's reasoning from Article 2 and Article 19(1) TEU persuasive or a stretch?
- Which provisions of the Act were easiest and hardest to defend, and why? Did the retirement-age point turn on discrimination or on independence?
- Poland argued judicial organisation is a national competence. Where is the line between national competence and the EU-law duty to provide effective legal protection?

On the politics (for the interveners and the defendant). Surface leverage and its limits.

- Interveners: what actually decided your submission, the legal argument or the political offer? Would you have chosen differently without the sanctions vote in the background?
- Finland faced a provision of its own law that a win for the Commission might expose. How much did self-interest, rather than principle, drive your position?
- Poland: did signalling non-compliance strengthen or weaken your position with the bench? Did it change how hard the interveners bargained?

On enforcement and effectiveness (for everyone). Surface the cross-cutting theory.

- The Court has legal supremacy but no army and no treasury. What, in this exercise, actually gave its judgment force, or failed to?
- Did the threat of ignoring the ruling make the bench more cautious, more assertive, or neither? Should it?
- Frozen recovery funds sat in the background as leverage over a sympathetic intervener. Is conditionality (money for rule-of-law compliance) a legitimate tool or political coercion?
- If you were designing the enforcement system, what would you change so that a member state cannot buy tolerance for a rule-of-law breach with a veto over unrelated business?

Close by explaining how the real procedure has been compressed (see Adaptation notes) and pointing students to the further reading in Appendix A.

Assessment suggestions

The exercise works well ungraded, but if assessment is wanted, keep it light:

- A short individual reflection (400–600 words) answering two or three debrief questions, or arguing whether the bench reached the right result.
- A participation mark for staying in role and engaging with both the legal argument and the lobbying.
- From the bench, a one-page written judgment with reasons, marked for legal reasoning rather than outcome.
- From counsel, a one-paragraph note of the single strongest point they made and the strongest point against them.

Adaptation notes

- **Scaling up.** Add intervening member states. Give each a short brief on the pattern of Finland (a genuinely undecided, rule-of-law-leaning state with a domestic provision at risk) or Hungary (a sympathetic state with its own reforms and its own political pressures). Candidates: a frontier state anxious about the sanctions package, a small state exposed to funding conditionality, or a state with a strong independent-judiciary tradition. Each intervener adds a lobbying target and a vote of confidence for the bench to weigh.
- **Scaling down.** With few students, run one intervener, and let counsel roles be single students. The bench needs a minimum of three to deliberate; if numbers are very tight, the instructor can chair as President and let a pair of students act as the deliberating judges.

- **Difficulty.** To sharpen the law, require the bench to rule on each of the four provisions separately with written reasons. To sharpen the politics, make the sanctions vote genuinely close so the defendant's veto is decisive, and let the instructor (as Council chair) stage the vote at the end.
- **Online delivery.** Put the bench, each party and the interveners in their own breakout rooms. Run the lobbying round as timed visits by counsel to the interveners' rooms. Deliver submissions and the judgment in the main room; share the scoring sheet on screen as the bench fills it in.
- **Different topic.** The structure (plaintiff, defendant, undecided interveners lobbied on merit and leverage, a bench that can split the ruling) transfers to any infringement or annulment dispute where enforcement depends on political will: state aid, environmental non-compliance, or asylum-solidarity litigation. Only the case file and briefs change.

Appendix A: Instructor materials

A1. Facilitator script (opening)

Read or paraphrase at the start:

“The Court is now sitting. Before us is an action by the European Commission against Poland concerning the Judicial Court Reform Act 2023. The Commission says the Act breaches the Union’s foundational values and the guarantee of effective judicial protection. Poland says the Court has no business ruling on how a member state organises its own courts. Two further member states, Finland and Hungary, may file observations, and both parties will be trying to win them over, on the law and by other means. Our task is to decide whether the Act breaches EU law, and if so, what should follow. Counsel, you will be interrupted with questions; that is the point. Let us begin.”

A2. Refereeing the political-leverage sub-game

The political leverage is the exercise’s engine, but it needs a referee or it collapses into either empty threats or chaos. You play the chair of the Council of the European Union, the only person who can rule on whether a veto threat is credible on the day. Hold to these principles.

- **The leverage is the sanctions vote.** A new Russia-sanctions package needs a unanimous Council vote soon. The defendant (and any sympathetic intervener) can threaten to veto it unless supported in the moot. That threat is the currency; almost everything else is bluff.
- **Credibility is costed.** A veto is expensive. Vetoing sanctions carries reputational and diplomatic cost for the state that casts it, and cross-pressures are built into the briefs: Hungary is under “enormous political pressure” not to block the package despite its sympathies; Finland, as a recent NATO member, strongly wants it to pass. When a state threatens a veto, ask it, out loud, what it is prepared to pay. A threat nobody believes carries no weight with the bench.
- **Side deals are allowed but disclosed.** The defendant may offer to reverse one or two minor provisions, or to drop the veto threat, in exchange for an intervener’s support. Deals are legitimate, but require them to be stated in the interveners’ observations phase so the bench and the other party know what happened.
- **Frozen funds are background pressure, not a bargaining chip in the room.** The recovery-fund freeze over a sympathetic intervener’s own rule-of-law record is context the Commission can invoke to pull that intervener back towards it. Let it be argued; do not let it become a fictional cash transfer.
- **No deal binds the bench.** Remind the bench that observations are weighed, not counted, and that a state’s threat to ignore the ruling is a reason to reason carefully, not a reason to cave. The tension between legal correctness and political effectiveness is the lesson, so let it stand rather than resolving it for them.

If the sub-game stalls (no one uses the leverage), prompt it: announce that the sanctions vote is now scheduled for next week and ask each intervener how it intends to vote.

A3. Bench judgment and scoring sheet

The bench uses this to structure deliberation and record the ruling. Work through the four provisions in turn: for each, decide whether it breaches EU law and note the ground. Then decide the remedy.

Provision of the Act	Key legal test	Strike / uphold	Ground and note
Age provision (lower retirement ages; ministerial discretion to extend; disproportionate effect on women via leave rules)	Non-discrimination (age and sex) and irremovability of judges; cf. C-286/12		
Appointment provision (parliament proposes candidates; National Council of the Judiciary sidelined; President of Poland, a party member, approves)	Independence of appointment; is there still an independent body deciding? cf. C-896/19		
Judicial restructuring (four-level to three-level; sitting bench made redundant, must reapply to parliament)	Irremovability; whether restructuring is a genuine reform or a device to replace the bench		
Disciplinary provision (chamber can sanction; questioning a judicial appointment as contrary to EU law is a disciplinary ground)	Independence of discipline; supremacy of EU law; Article 47 Charter		

Remedy and penalty

- Does the Court order Poland to comply (Article 258 / 260 TFEU)? Yes / No.
- Lump sum? Daily penalty? Neither? Note the reasoning against the three factors: importance of the rules breached and impact of the infringement; period the breach has run; the state's ability to pay and the deterrent effect.

Scoring the advocates (optional, for the instructor). Score each party out of 5 on: (1) command of the treaty provisions and case law; (2) responsiveness to bench questions; (3) effectiveness in the lobbying round; (4) staying in role. The bench itself can be scored on the coherence of its reasons, not on whether it reached any particular result.

A4. Model analysis (for the instructor)

There is no single correct outcome; a defensible judgment can strike all four provisions or uphold some. The following is the mainstream reading of the analogous real law, offered so you can steer the debrief.

- **Competence.** Poland's strongest point is that court organisation is a national competence (Article 4 and Article 5 TEU). The standard answer is that while member states organise their own courts, they must do so consistently with Article 19(1) TEU: national courts are EU courts when they apply EU law, so their independence is an EU-law question. This is the pivot of the whole case.
- **Age provision.** Vulnerable on both discrimination (echoing the earlier judgment on retirement ages) and, more seriously, on irremovability: lowering the age mid-career and letting a minister discretionarily extend individual judges compromises independence.
- **Appointment provision.** The test from the appointments case law is whether an independent body still effectively decides. Sidelining the independent council in favour of parliament plus a partisan president's approval is hard to defend.
- **Restructuring.** Restructuring is lawful in principle; the difficulty is that making the whole sitting bench reapply looks like a device to replace judges, which engages irremovability.
- **Disciplinary provision.** The weakest for Poland: making it a disciplinary offence for a judge to question an appointment as contrary to EU law directly attacks the supremacy of EU law and the right to an independent tribunal under Article 47 of the Charter.
- **Enforcement.** Even a clear judgment can be resisted. The point of the political sub-game is to show that the Court's authority depends on member states' willingness to comply and on the Commission's follow-through under Article 260 TFEU.

A5. Further reading

- Pech, L. and Scheppele, K.L. (2017) 'Illiberalism Within: Rule of Law Backsliding in the EU', *Cambridge Yearbook of European Legal Studies*, 19, pp. 3–47. The framing study of rule-of-law backsliding.
- Case C-64/16 *Associação Sindical dos Juízes Portugueses* (2018). The judgment that made Article 19(1) TEU a free-standing source of the independence requirement; essential background.
- Case C-619/18 *Commission v Poland (Independence of the Supreme Court)* (2019). The retirement-age case the scenario is modelled on.
- Case C-896/19 *Repubblika v Il-Prim Ministru* (2021). On political involvement in judicial appointments where an independent body still decides.
- Kelemen, R.D. (2020) 'The European Union's Authoritarian Equilibrium', *Journal of European Public Policy*, 27(3), pp. 481–499. On why enforcement stalls when member states shield one another.
- European Commission, *Rule of Law Report* (annual), at commission.europa.eu. The Commission's own monitoring framework.

Appendix B: Student handouts and role briefs

CASE FILE · SHARED

Shared case file: **Commission v Poland**

Read this in full before your own role brief. This scenario is fictional and modelled on, but not identical to, real Court of Justice rule-of-law litigation.

The dispute. The Commission has brought an action against Poland over the enactment of the Judicial Court Reform Act 2023. The Act's stated aim was to reform a judicial system the government said was afflicted with corruption and an organisational structure and mentality reminiscent of the communist era. The Commission says the Act breaches the rule of law and the independence of the judiciary required by EU law. Poland says the Court has no jurisdiction to interfere with how a member state structures its own judiciary, and that disclosing the personal affiliations of judges would not affect independence but would increase transparency. Other member states may submit observations supporting either side.

The four provisions challenged.

- **Age provision.** The retirement age of Supreme Court justices is lowered from 70 to 65, and for all other judges and prosecutors from 67 to 65, dropping to 60 for anyone who took a career break longer than six months. (A similar 2019 provision was struck down by the Court for gender discrimination, because the retirement age differed by gender; that ruling was complied with, but the current wording would disproportionately affect women because of maternity leave.) The retirement age can be extended for two further five-year periods at the discretion of the Minister for Justice.
- **Appointment provision.** The reforms remove the selection of Supreme Court justices from the independent National Council of the Judiciary. Parliament may now bring candidates to the Council for consideration in all judicial appointments, and all appointments are subject to approval by the President of Poland, who is a member of the governing parliamentary party.
- **Judicial restructuring provision.** The court system is restructured from four levels to three. The current bench is made redundant and must apply for reappointment, this time to parliament rather than to the National Council of the Judiciary.
- **Disciplinary provision.** A disciplinary chamber is established within the Supreme Court to handle disciplinary proceedings for all judicial appointments, with powers to fine, cut salary or dismiss. One ground for a disciplinary proceeding is a judge questioning the validity of a judicial appointment as being contrary to EU law.

Relevant law. The Commission relies on the following public EU legal provisions (quoted or summarised; consult the official texts for full wording).

- **Article 2 TEU.** The Union is founded on the values of respect for human dignity, freedom, democracy, equality, the rule of law and respect for human rights, including the rights of persons belonging to minorities, in a society marked by pluralism, non-discrimination, tolerance, justice, solidarity and equality between women and men.

- **Article 4 TEU.** Competences not conferred on the Union remain with the member states; the Union respects member states' national identities inherent in their fundamental political and constitutional structures, and their essential state functions, national security remaining the sole responsibility of each state.
- **Article 5 TEU.** Governs the principles of conferral, subsidiarity and proportionality regarding EU competences.
- **Article 19(1) TEU.** The Court of Justice of the European Union ensures that in the interpretation and application of the Treaties the law is observed; member states shall provide remedies sufficient to ensure effective legal protection in the fields covered by Union law.
- **Article 260 TFEU.** If a member state does not comply with the Court's judgment, a further action can result in the imposition of financial penalties.
- **Article 267 TFEU.** The Court has jurisdiction to give preliminary rulings on the interpretation of the Treaties and the validity and interpretation of acts of the Union institutions, on a reference from a national court; a court of last instance must refer.
- **Article 47 of the Charter of Fundamental Rights.** Guarantees the right to an effective remedy and a fair trial before an independent and impartial tribunal established by law.

Case law.

- *C-286/12 Commission v Hungary*: lowering the retirement age of judges created differences in treatment on grounds not proportionate under Directive 2000/78/EC.
- *C-896/19 Repubblica v Il-Prim Ministru*: under Article 19 TEU and Article 47 of the Charter, political involvement in judicial appointment is permitted under EU law provided an independent body makes the appointments.

The European Commission (plaintiff)

Your role. You are the guardian of the Treaties. Following an investigation into suspected non-compliance, and having issued a formal notice and a reasoned opinion giving the state time to return to compliance, you have referred the matter to the Court. You are the plaintiff. You protect the interests of the EU and its citizens on issues that cannot be dealt with effectively at national level, and once judgment is given you ensure it is complied with, pursuing enforcement if it is not.

Your position. Poland's Judicial Court Reform Act 2023 breaches EU law on the rule of law and the independence of the judiciary. Argue:

- The Court has grounds to decide because of the rule-of-law requirements of EU law and the fair-trial rights in the Charter. Judicial organisation may be national, but its independence is an EU-law question wherever national courts apply EU law (Article 19(1) TEU).
- The **age provision** is discriminatory on grounds of age and sex, and the ministerial discretion to extend individual judges undermines their independence.
- The **restructuring** is a ploy to reappoint every judge; the **appointment** process is no longer independent because of political influence (parliament plus a partisan president).
- The **disciplinary chamber** is a direct attack on judicial independence, and you doubt the chamber's own independence.
- Making the invocation of EU law a disciplinary ground breaches the supremacy of EU law and the Treaties.

Penalties. Propose that the Court impose a lump sum and/or a daily penalty, calculated on the importance of the rules breached and the impact of the infringement, the period the breach has run, and the state's ability to pay (to ensure deterrence). You propose an amount; the Court fixes the final figure.

Political leverage to use. Lobby the interveners. Remind Hungary that €30 billion of its Recovery and Resilience funds are frozen over its own rule-of-law breaches, and that compliance was the condition for release, useful pressure given its high inflation and large deficit. Remind Finland that it is a strong rule-of-law state and, as a recent NATO member, strongly wants the Russia-sanctions package to pass, so it should not indulge a state threatening to veto it.

Poland (defendant)

Your role. You are the defendant member state. The Commission is taking action against you in the Court of Justice.

Your position. You want the Court to find, first, that it cannot adjudicate on judicial administration (the matter is beyond its competence) or, failing that, that EU law does not apply to the Act (no basis in EU law for the Commission's claims).

Legal arguments.

- The administration of the judiciary is not a competence on which the Court can adjudicate (Articles 4 and 5 TEU).
- EU law and the Charter do not apply; compare the content of the Polish law to the EU provisions to show there is no link.
- EU law does not explicitly state that judicial independence is a legal principle of the Union.
- Reducing the court system from four levels to three is consistent with reforming and streamlining a complicated legal system, not with attacking independence.
- The disciplinary chamber is an appropriate body to punish judicial wrongdoing. Determining wrongdoing calls for a holistic approach, so decisions taken by judges that relied on EU law are legitimate grounds for examination by the chamber.
- There are sufficient safeguards to ensure the chamber's independence and impartiality.

Political leverage to use. The Court can take very broad interpretations, so hedge your legal argument with a political edge: signal that you will not comply with an adverse ruling, and make that threat credible by garnering support among other member states. A new Russia-sanctions package needs a unanimous Council vote soon; you hold a veto.

- Negotiate for interveners to submit observations in your favour, using either the merits of your argument or the veto as political ransom.
- You may offer to reverse one or two of the more minor provisions in exchange for support.
- You are free to ignore an adverse decision, but if no member states have sided with you, you will likely face future financial sanctions and intense political pressure from the rest of the bloc.

Finland (intervening member state)

Your role. You may submit an observation in favour of either the Commission or Poland. You are genuinely undecided. Both parties will make their case to you before the sitting, and you must then choose.

Legal motive. You are dissatisfied with some of Poland's reforms and suspect they breach EU law, but you are unsure whether the Court has grounds to rule on the organisation of a member state's judiciary. This matters to you directly: Finland has for years had a domestic provision allowing the legislature to put forward candidates for appointment, with appointments made by an independent judicial appointments board, to all judicial positions. If the Commission wins, that provision could be exposed to future challenge under EU law.

Political background.

- Backing Poland may sway the Court towards Poland, because it suggests a credible threat of support for non-compliance. Backing the Commission adds weight to its argument.
- A new Russia-sanctions package needs a unanimous Council vote soon. Finland and its population, as a recent NATO member, strongly favour the package.
- Finland is a strong believer in the rule of law as a principle foundational to the operation of the EU.

Weigh your principled commitment to the rule of law and the risk to your own appointments provision against the politics of the sanctions vote, then decide.

Hungary (intervening member state)

Your role. You may submit an observation in favour of either the Commission or Poland. You are contemplating a submission but have not decided. Poland will negotiate for your support, on legal merit or on political consequence.

Legal background.

- Since the relevant law contains no reference to judicial independence, you think the Court is overstepping its jurisdiction in accepting that EU law contains a principle of judicial independence.
- Hungary has itself introduced reforms lowering the retirement age of judges and prosecutors.
- Hungary has given the legislature the power to appoint the President of the Supreme Court, a power previously held by an independent judicial appointments board. A ruling for the Commission could expose your own reforms.

Political background.

- Backing Poland may sway the Court towards Poland, because it suggests a credible threat of a legislative override or support for non-compliance. Backing the Commission adds weight to its argument.
- A new Russia-sanctions package needs a unanimous Council vote soon. Hungary is under enormous political pressure not to block it, though your government has been sympathetic to arguments made for the invasion.
- After the pandemic, Hungary faces budget deficits and high inflation, and much of its Recovery and Resilience funding has been frozen over rule-of-law concerns. The governing party holds its majority following the 2022 election.

You are sympathetic to Poland, but weigh that sympathy, and the risk to your own reforms, against the funding pressure and the political cost of obstructing the sanctions package.